

STATE OF NEW YORK

5881--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. ZINERMAN, SHIMSKY, HYNDMAN -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property law, in relation to designating the county of Kings a cease and desist zone and establishing an affirmative defense to violations of nonsolicitation orders and cease and desist zones

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The real property law is amended by adding a new section
2 442-hh to read as follows:

3 § 442-hh. Designating the county of Kings a cease and desist zone.
4 Notwithstanding any other law, rule or regulation to the contrary, the
5 county of Kings shall be included on the cease and desist list compiled
6 by the secretary of state pursuant to section four hundred forty-two-h
7 of this article.

8 § 2. Section 442-h of the real property law is amended by adding a new
9 subdivision 5 to read as follows:

10 5. In any action alleging a violation of this section, it shall be an
11 affirmative defense that the owner of residential real property included
12 in a nonsolicitation order or cease and desist zone publicized that such
13 property was for sale through means including but not limited to adver-
14 tisements or real estate listings.

15 § 3. This act shall take effect on the thirtieth day after it shall
16 have become a law and shall apply to all nonsolicitation orders issued
17 on and after such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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